

IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST

REPUBLIC OF SRI LANKA

In the matter of an Appeal filed in terms of
Section 331(1) of the Code of Criminal
Procedure Act No. 15 of 1979, read with
Article 138 of the Constitution

Democratic Socialist Republic of Sri Lanka

Complainant

Court of Appeal Case No:

CA/HCC/0151/2024

High Court of Badulla Case No:

HC 45/2019

Vs

Dissanayake Mudiyansele Lahiru
Krishantha

Accused

AND NOW BETWEEN

Dissanayake Mudiyansele Lahiru
Krishantha

Accused – Appellant

Vs

Hon. Attorney General,
Attorney General's Department,
Colombo 12.

Complainant - Respondent

Before : **P. Kumararatnam, J.**
Pradeep Hettiarachchi, J.

Counsel : Malintha Jayasinghe for the Accused-Appellant.
: Janaka Bandara D.S.G for the Respondent.

Argued on : 18.05.2026

Decided on : 25.06.2026

Pradeep Hettiarachchi, J

Judgment

1. The Accused-Appellant (hereinafter referred to as “the Appellant”) has preferred the instant appeal against the conviction and sentence dated 07.06.2024 of the Learned High Court Judge of Badulla. The Appellant was indicted before the High Court of Badulla for committing grave sexual abuse on a boy under 16 years, an offence punishable under Section 365(B) 2 (b) of the Penal Code.
2. Five witnesses testified for the prosecution. The Appellant made a dock statement. During the argument, four grounds of appeal were advanced by the Counsel for the Appellant, which are as follows:
 - a. PW1’s evidence contradicts the findings of the Medico Legal Report (MLR);
 - b. The date of offence contradicts with the findings of the MLR;
 - c. The Learned Trial Judge has failed to consider the credibility of PW3’s testimony;
 - d. The Learned High Court Judge’s conclusion as to the date of the offence contradicts with the findings of the MLR; and,
 - e. The Learned Trial Judge has failed to analyze the defence evidence.

3. According to PW1, the victim, during the relevant period, resided with his parents but frequently stayed at his grandmother's house when his parents were at work. His grandmother's residence was situated in close proximity to his own home. PW1 further stated that his grandmother's house consisted of two sections: an old house and a newly constructed, but incomplete house.
4. According to the victim, on the day of the incident, he went to his grandmother's house and was watching television while seated on a bed. At that time, he was the only person present in the house. While he was there, the Appellant arrived and removed the victim's clothes and committed the alleged offence.
5. The victim further stated that, while the Appellant was engaged in the act, his grandmother happened to arrive at the house and witnessed the incident. Upon seeing her, the Appellant ceased his actions. The grandmother reprimanded the Appellant, following which he left the premises. Before leaving, the Appellant allegedly instructed the victim not to disclose the incident to anyone.
6. On the following day, the victim informed his mother of the incident. Thereafter, his mother accompanied him to the Police Station, where he made a statement regarding the occurrence.
7. Subsequently, the victim was admitted to the Mahiyanganaya Hospital and was later transferred to the Kandy Hospital for further treatment and examination. At the Kandy Hospital, the victim was examined by a Judicial Medical Officer.
8. Since the Appellant contended that the findings of the Judicial Medical Officer, as reflected in the Medico-Legal Report, were inconsistent with and contradictory to the testimony of the victim, I shall now consider whether such a contradiction in fact exists.
9. In his testimony, the victim stated that this was the first occasion on which he had been subjected to such an offence. However, according to the evidence of the Judicial Medical Officer, there was medical evidence suggestive of repeated anal

penetration in the past. The Judicial Medical Officer further observed a healed tear at the 6 o'clock position.

10. According to his testimony, the victim was examined on 02.09.2013 at about 11.00 a.m. at the Judicial Medical Officer's Office of the National Hospital, Kandy. In the opinion of the Judicial Medical Officer, the healed tear observed during the examination could have been sustained approximately two weeks prior to the date of examination.
11. The Appellant contends that, since the tear observed in the anus of the victim had occurred approximately two weeks prior to the examination and the medical evidence was suggestive of repeated anal penetration, the testimony of the victim is rendered untrustworthy.
12. It is true that the victim stated he was subjected to this act by the Appellant only once, despite medical evidence suggesting repeated anal penetration and, more importantly, a two-week-old tear observed in the anus. Consequently, the Appellant contended that the victim's evidence is untrustworthy. However, it must be noted that the victim was only nine years old at the time of the offence, whereas he was eighteen years old when testifying before the High Court. Needless to say, a boy of that age is naturally reluctant and shy to fully disclose such incidents that occurred during his childhood.
13. The evidence of PW3 also corroborates the victim's testimony, as PW3 had witnessed the incident. More importantly, PW3's evidence further indicates that the victim had been subjected to the said offence on several occasions when the Appellant returned home on leave, as stated by the victim. What is discernible from the evidence of PW3 is that the Appellant had committed the offence on several occasions prior to the incident in question, but the victim had not complained to anyone, as he was unable to comprehend the gravity of the act, given his tender age. It was only after PW3 witnessed the incident in question that the victim made a complaint.

14. In *State of Himachal Pradesh vs. Sanjay Kumar alias Sunny* AIR 2017 SC 835, and subsequent cases, the Supreme Court of India emphasized that the reluctance or partial retraction by child victims may be viewed in light of the profound psychological trauma they endure. Courts note that child witnesses are highly vulnerable, and their hesitation should not automatically negate the prosecution's case.
15. Thus, PW3's testimony is in line with the medical evidence. Therefore, the mere fact that the victim stated that the Appellant committed the offence only once does not, in itself, render his evidence untrustworthy or unreliable. The credibility of PW3's testimony remains intact notwithstanding the fact that she was subjected to cross-examination. The defence failed to elicit any material contradiction or omission in her evidence that would give rise to a reasonable doubt as to the truthfulness or reliability of her testimony. Consequently, I find no basis to reject the evidence of PW3.
16. It is also significant to note that the history given by the victim to the Judicial Medical Officer was also indicative of repeated acts of a similar nature on previous occasions.
17. It was also contended that the Learned Trial Judge failed to properly analyze and evaluate the defence case. In his dock statement, the Appellant admitted that he had been seated on the bed with the victim. He further stated that he had come to the house at the invitation of one Ranga and that, after switching on the television, he left the premises together with the said Ranga.
18. Furthermore, the Appellant stated that the victim's father was not on good terms with him, as the latter had requested a loan of Rs. 50,000.00 from the Appellant, which he was unable to provide. On that basis, the Appellant sought to suggest that he had been falsely implicated in the offence.
19. The Learned Trial Judge has adequately considered the Appellant's dock statement and has provided cogent reasons as to why he was not inclined to accept it. If, as

alleged by the Appellant, he had come to the house at the invitation of Ranga and subsequently left the premises together with him, the Appellant could easily have called Ranga as a witness to support that version of events. However, Ranga was never called to testify on behalf of the Appellant.

20. In those circumstances, the Learned Trial Judge was justified in treating the Appellant's explanation with caution and in declining to place reliance upon it.
21. Moreover, none of the positions taken up by the Appellant in his dock statement had been put to the prosecution witnesses during cross-examination. The Learned Trial Judge carefully examined the contents of the dock statement and duly noted the Appellant's failure to challenge the prosecution witnesses on those matters when they testified before the Court.
22. Very often, eyewitnesses to offences of this nature are not available, as such offences are committed in secrecy and it is usually only the victim who is able to testify as to what transpired. However, in the present case, PW3 has witnessed the incident, and her evidence was found to be credible and convincing. At no stage was the credibility of her testimony impeached in cross-examination by the defence.
23. The evidence of the victim and PW3, when considered in its totality, does not, in my opinion, reveal any material contradictions or inconsistencies. The Learned Trial Judge, in his analysis of the evidence, has carefully and correctly addressed all relevant issues and has arrived at the conclusion that the prosecution has established the charge against the Appellant beyond a reasonable doubt.
24. It is also desirable to emphasize that the Learned Trial Judge had the advantage of observing the demeanor of the witnesses. Accordingly, Appellate Courts are slow to interfere with the findings of a Trial Judge unless it is demonstrated that the Trial Judge has manifestly misdirected herself on a material issue, thereby causing prejudice to the Appellant.
25. In *Alwis vs. Piyasena Fernando (1993) 1 Sri. L R 119*, it was held that:

"It is well established that findings of primary facts by a trial Judge who hears and sees witnesses are not to be lightly disturbed on appeal."

26. Similar sentiments were articulated in ***Dharmasiri vs. Republic of Sri Lanka [2010] 2 Sri. L.R.241***, where it was held that:

"Credibility of a witness is mainly a matter for the trial Judge; the Court of Appeal will not lightly disturb the findings of a trial Judge with regard to the credibility of a witness unless such findings of the trial Judge are manifestly wrong."

27. In the Court of Appeal decision of ***Kumar de. Silva and 2 others vs. Attorney General [2010] 2 Sri LR 169***, Sarath de. Abrew J had held that;

"Credibility is a question of fact, not of law. The acceptance or rejection of evidence of witnesses is therefore a question of fact for the Trial Judge."

28. In ***Ariyadasa vs. Attorney General [2012] 1 Sri LR 84***, the Court of Appeal held that;

"Court of Appeal will not lightly disturb a finding of a Judge with regard to the acceptance or rejection of a testimony of a witness, unless it is manifestly wrong, when the Trial Judge has taken such a decision after observing the demeanour and deportment of a witness....."

29. In these circumstances, I find no basis to agree with the Appellant's contention that the Learned Trial Judge failed to properly analyze and evaluate the defence case. On the contrary, the judgment demonstrates a careful consideration of both the prosecution and defence evidence. Accordingly, the grounds of appeal advanced by the Appellant are devoid of merit and must fail.

30. For the foregoing reasons, I find no basis to interfere with the findings of the Learned Trial Judge. Accordingly, I affirm the conviction and sentence imposed by

the Learned High Court Judge of Badulla on 07.06.2024. In the circumstances, the appeal is dismissed.

31. However, having regard to the age of the victim, this Court is of the view that the compensation awarded by the Learned High Court Judge is excessive. Therefore, it is reduced to Rs. 50,000/-. In default of payment of the said compensation, the Appellant shall undergo six months' simple imprisonment. Subject to the aforesaid variation in respect of compensation, the appeal stands dismissed.

32. Nevertheless, it is hereby ordered that the sentence shall take effect from the date of conviction, namely 07.06.2024.

Judge of the Court of Appeal

P. Kumararatnam, J

I agree

Judge of the Court of Appeal